

The M.P. Trade Unions Regulations, 1961

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State of Madhya Pradesh - Act

The M.P. Trade Unions Regulations, 1961

MADHYA PRADESH

India

The M.P. Trade Unions Regulations, 1961

Rule THE-M-P-TRADE-UNIONS-REGULATIONS-1961 of 1961

Published on 15 September 1961

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The M.P. Trade Unions Regulations, 1961

Published vide Notification No. M.P. Rajpatra, Part 4 (Ga), dated 15-9-1961 at page 796

1.

Short title, extent and commencement.

(1)

These regulations may be called the Madhya Pradesh Trade Unions Regulations, 1961.

(2)

They shall extend to Trade Unions whose objects are confined to the State of Madhya Pradesh.

(3)

They shall come into force immediately on their publication in the Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires-

(a)

The "Act" means the Indian Trade Unions Act, 1926 (XVI of 1926);

(b)

"Form" means a form appended to these regulations; and

(c)

"Section" means a section of the Act.

3.

Form of application for registration.

- Every application for registration of a Trade Union shall be made in Form A.

4.

Evidence to prove authority to make application.

- Upon an application for the registration of a Trade Union, the Registrar may require from the applicants such evidence, as may seem to him to be necessary to show that the applicants have been duly authorised to make the application on behalf of the Trade Union and that the other particulars in Form A are correct.

5.

Form of register.

- The register of Trade Unions referred to in Section 8 shall be maintained in Form 13.

6.

Form of certificate.

- The certificate of registration issued by the Registrar under Section 9 shall be in Form C.

7.

Fees for registration.

- The fee payable for registration of a Trade Union shall be Rs. 5.

8.

Withdrawal or cancellation of certificate of registration- Form of application for withdrawal or cancellation.

(1)

Every application by a Trade Union for withdrawal or cancellation of its certificate of registration shall be sent to the Registrar in Form D.

(2)

Verification of application. - The Registrar, on receiving an application for withdrawal or cancellation of registration; shall, before granting the application, verify that the application was approved in a general meeting of the Trade Union, or if it was not so approved, that it has the approval of a majority of the members of the Trade Union. For this purpose, the Registrar may call for such further particulars as he may deem necessary and may examine any officer of the union.

9.

Change of office bearers.

- Intimation of any change in the officers of a registered Trade Union shall be sent to the Registrar within a fortnight of the change in Form E.

10.

Change of address of head office of a Trade Union.

- Notice of any change in the address of the head office of a Trade Union shall be given to the Registrar in Form F within a fortnight of the change.

11.

Transfer of head office of a Trade Union.

(1)

The Registrar, on receipt of a notice of removal of the registered office to another State, shall forward to the Registrar of the State to which the head office of the Trade Union has been transferred, a copy of all the entries contained in the register prescribed by Regulation 5 and a copy of the rules of the union.

(2)

Where the head office of a Trade Union is transferred from another State to the State of Madhya Pradesh, the Registrar

shall, on receipt of particulars relating to the 'Trade Union from the Registrar from whose jurisdiction the transfer has been effected, enter these particulars in his register and notify that fact that he has done so to the Secretary of the Trade Union.

12.

Alteration of rules.

(1)

On receiving a copy in duplicate of any alteration made in the rules of a Trade Union under sub-section (3) of Section 28, the Registrar shall, unless he has reason to believe that the alteration has not been made in the manner provided by the rules of the Trade Union unless, the alteration is not in accordance with the provisions of the Act register the alteration in a register to be maintained for this purpose and she notify the fact that he has done so to the Secretary of the 'Trade Union.

(2)

The fee payable for registration of alteration of rules shall be R for each set of alterations made at one time.

13.

Change of name.

(1)

The notice of any change of the name of the Trade Union shall be sent to the Registrar in Form G.

(2)

When the Registrar registers a change of name under sub-section (3) of Section 25, he shall certify under his signature at the foot of the certificate issued under Regulation 6 that the new name has been registered. The Secretary shall present the certificate to the Registrar for making this entry.

14.

Amalgamation of Trade Unions-Form of notice.

- Notice of every amalgamation shall be sent to the Registrar in duplicate in Form II.

15.

Dissolution of registered Trade Unions.

- When a registered Trade Union is dissolved, notice of the dissolution shall be sent to the Registrar in Form I.

16.

Division of Funds.

- Where it is necessary for the Registrar, under sub-section (2) of Section 27, to distribute the funds of a registered Trade Union which has been dissolved, he shall divide the funds among the members in proportion to the amounts contributed by them by way of subscription during their membership.

17.

Annual returns.

- The general statement to be furnished under Section 28 shall be submitted (in duplicate) to the Registrar by the 31st day of March in each year and shall be in Form J.

18.

Audit.

(1)

Save as provided in sub-regulations (2), (3), (4) and (5) of this regulation, the annual audit of the accounts of any registered 'Trade Union shall be conducted by an auditor having the qualifications prescribed in sub-section (1) of Section 226 of the Indian Companies Act, 1956 (1 of 1956).

(2)

Where the membership of a registered Trade Union did not, at any time, during the year ending on the 31st December, exceed 2000. the annual audit of the accounts may be conducted-

(a)

by any auditor if authorised by the State Government to examine public accounts; or

(b)

by any person who, having held an appointment under the Government in any audit or accounts department, is in receipt of a pension of not less than Rs. 100 per mensem; or

(c)

by a Chartered Accountant.

(3)

Where the membership of a registered Trade Union did not, at any time, during the year ending on the 31st day of December, exceed 1,000 the annual audit of the accounts may be conducted-

(a)

by any two persons holding office as a Magistrate or a Judge, or who are Members of Parliament, the State Legislature, a Corporation, a Municipal Committee, a District Local Board, a Mandal Panchayat, or

(b)

by any person who, having held an appointment under the Government in any audit or accounts department, is in receipt of a pension from the Government of not less than Rs. 50 a month, or

(c)

by any auditor appointed to conduct the audit of Co-operative Societies by the Government or by the Registrar of Co-operative Societies or by any co-operative organisation recognised by the Government for this purpose.

(4)

Where the membership of a registered Trade Union did not at any time, during the year ending on the 31st December exceed 250, the annual audit of the accounts may be conducted by any two ordinary members of such registered Trade Union who were not on the executive during the period to which the accounts pertain.

(5)

Where the registered Trade Union is a federation of Trade Unions and the number of such unions affiliated to it at any time during the year ending on the 31st December, did not exceed 50, 15 or 5, respectively, the audit of the accounts of the federation may be conducted as if it has not, at any time, during the year had a membership of more than 2,000, 1,000 or 250 respectively.

19.

Disqualification of auditors.

- Notwithstanding anything contained in Regulation 18, no person who, at any time, during the year for which the accounts are to be audited, was entrusted with any part of the funds or securities belonging to a registered Trade Union shall be eligible to audit the accounts of that union.

20.

Accessibility to the books of accounts.

- The auditor or auditors appointed in accordance with these regulations shall be given access to all the books of the registered Trade Union concerned and shall verify the general statement submitted under Section 28 with the accounts and vouchers relating thereto and shall thereafter sign the auditor's declaration appended to Form J, indicating separately on that form under his signature or their signatures a statement showing in what respect he or they find the return to be incorrect, not, supported by vouchers or not in accordance with the Act. The particulars given in the statement shall indicate-

(a)

every payment which appears to be unauthorised by the rules of the registered Trade Union concerned or contrary to the provisions of the Act;

(b)

the amount of any deficit or loss which appears to have been incurred by the negligence or misconduct of any person;

(c)

the amount of any sum which ought to have been, but is not brought to account by any person.

21.

Audit of political fund.

- The audit of the political fund of a registered Trade Union shall be carried out along with the audit of the general account of the registered Trade Union by the same auditor or auditors.

22.

Form for list of approved unions.

- The list of approved unions referred to in Section 28-A shall be maintained in Form K.

23.

Form for application for entry in the approved list.

- livery application under sub-section (1) of Section 28-C for being entered in the list of approved unions shall be made in Form L.

24.

The nature of enquiry by Registrar.

(1)

On receipt of the application for being entered into the list of approved unions, the Registrar, if prima facie satisfied that the union deserves to be entered in the list of approved unions, shall cause to be put up a notice on the premises of all undertakings in the industry in that local area at such conspicuous places, as he may deem fit, inviting objections within one month against the entry of the union in the approved list.

(2)

If no objections are received within the time mentioned in the notice, the Registrar, after making such enquiry, as he may deem fit, if he is satisfied that the applicant union fulfils the conditions necessary for being entered in the approved list in accordance with sub-section (1) of Section 28-D he shall enter the name of such union in the approved list maintained under Section 28-A.

(3)

If any objection is received from any person within the time mentioned in the notice referred to in sub-regulation (1), the Registrar shall, after giving him an opportunity of being heard and making such further enquiry as he may deem fit, if he is satisfied that the conditions mentioned in sub-section (1) of Section 28-D are fulfilled, he shall enter name of such union in the approved list maintained under Section 28-A.

25.

Certificate of entry in approved list.

- The certificate of entry in the list of approved unions shall be in Form M.

26.

Collections of sums on the premises of the undertakings by certain officers of Approved Unions.

- Every officer of the approved union and such members of the union as have completed at least six months of membership and been authorised by the President in this behalf shall, subject to the following conditions, be entitled to collect sums payable by it members on the premises of an undertaking where wages are paid to them-

(a)

the name or names of the officer, officers, or members, authorised in this behalf shall be intimated in advance to the employer and changes, if any, therein shall be communicated to (he employer at least 24 hours before the date of collection;

(b)

the officers and members visiting the undertaking for this purpose shall carry a letter of authority in Form N;

(c)

no correction or force shall be used on any employee;

(d)

the collection shall be made without causing hindrance to the staff of the undertaking or interference in the managements's work;

(e)

not more than 25 employees at a time shall be allowed together at the place where such sums are collected;

(f)

collections shall be made on the usual pay day or days and the subsequent three days and the day on which unclaimed wages are paid.

27.

Putting up notice boards of the Approved Unions in the undertaking.

- livery officer of the approved union and a member or a person authorised by the President shall be entitled to put up or cause to be pul up a notice board outside the time-keeper's office or at any other conspicuous place mutually agreed upon between the employer and the union and affix notices therein during the hours the undertaking is open :

Provided that-

(a)

the notice board to be put up shall be of a reasonable size;

(b)

the notices to be affixed shall be signed either by the President, the Vice-President when carrying on the duties of the President during this absence, the General Secretary, the Secretary, the Joint Secretary, the Assistant Secretary or the Treasurer; and

(c)

such notices shall relate to lawful activities of the union and shall not be of an offensive or provocative nature.

28.

Powers of Approved Unions.

- Subject to the provisions of Regulations 30, 31 and 32 the President, the General Secretary, the Joint Secretary, the Assistant Secretary and the Treasurer of an approved union and such members or paid workers of the union as may be authorised in this behalf shall, for the purpose of the prevention or settlement of a trade dispute, have a right, and shall be permitted by the employer, to do all or any of the acts mentioned in sub-clauses (i), (ii) and (iii) of clause (c) of Section 28-H.

29.

Right of holding discussions on the premises of the undertaking with employees.

- The officers and members specified in Regulation 28 shall have the right and shall be permitted by the employer, to hold discussions on the premises of the undertaking with the employees concerned who are the members of the approved union :

Provided that-

(a)

the union shall intimate, in advance to the employer the name or names of the officer or officers or members authorised for the purposes and the name of the department or departments in which the members concerned are employed; and

(b)

the discussions shall be held in such manner as not to interfere with the working of the undertaking.

30.

Right of holding discussions on the premises of the undertaking with the employer.

- 'The officers or members of an approved union specified in Regulation 28 shall have the right to meet the employer or any person appointed by him for the purpose and discuss with him the grievances of its members employed in his undertaking subject to the following conditions, namely :-

(a)

the discussion shall ordinarily be held on two days in a week during such hours as may be fixed by agreement between the employer and the union except in urgent cases when it may be held on any day and at any time by previous appointment;

(b)

the union shall ordinarily communicate, in advance, the nature of the grievances which it desires to discuss;

(c)

the name of the officer or member authorised in this behalf shall either be communicated to the employer in advance or such officer shall carry a letter of authority in Form O.

31.

Right of inspection of places in an undertaking.

- Any officer or member specified in Regulation 28 shall have a right, and shall be permitted by the employer, to inspect in any undertaking any place where any member of the union is employed provided he carries with him a letter of authority in Form P and informs the employer before hand which place in the undertaking he desires to inspect.

32.

Form for reference of a dispute as regards the lawful officer of a registered Trade Union to the Industrial Court.

- If there is any dispute as to who is the lawful officer of a registered Trade Union, the person claiming to be such an officer or the Registrar may refer the dispute to the Industrial Court for decision by making an application in Forms Q and R respectively, accompanied with a certified copy of the rules of the Trade Union.

33.

Inspection of register, approved list and other documents.

- [(1) The register of Trade Unions and the list of approved unions maintained in accordance with Regulations 5 and 22

shall be open for inspection by any person on payment of a fee of Rs. 5/-.

(2)

Certified copies of the entries in the registers mentioned in sub-regulation (1) and copies of the rules of a registered Trade Union may be granted to any person who has applied in this behalf to the Registrar on payment of a copying fee of Rs. 2/- per 100 words subject to minimum of Rs. 8A. Half of the amount so realised shall be payable to the official for typing and comparing.

(3)

Any documents in the possession of the Registrar received for a register Trade Union may be inspected by any member of that union on payment of a fee of Rs. 5/- on production of membership certificate of the union]

[Substituted by Notification No. F-2-1-91-XVI-A-92, dated 4-2-1993.]

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(4)

Documents shall be open to inspection every day on which the office of the Registrar is open within such hours as may be fixed for this purpose by him.

34.

Repeal and savings.

(1)

The Madhya Pradesh Trade Unions Regulations, 1927, the Madhya Pradesh Trade Union Regulations, 1951, the Vindhya Pradesh Trade Unions Regulations, 1952, the Bhopal State 'Trade Unions Regulations, 1952 and the Rajasthan Trade Unions Regulations in their application to the Sironj region are hereby repealed :

Provided that anything done or any action taken under any of the Regulations so repealed shall, unless such thing or action is inconsistent with any of the provisions of these Regulations, be deemed to have been done or taken under the corresponding provisions of these Regulations.

Form A

[See Regulation 3]

Application for Registration of Trade Unions

Name of the Trade Union.....

Address.....

Dated the..... day of..... 19.....

1. This application is made by the persons who names are subscribed at the foot hereof.

2. The name under which it is proposed that the 'Trade Union on behalf of which this application is made shall registered, is.....as set forth in Rule No.....A copy of the resolution approving the name of the union passed in a meeting of.....on.....is enclosed.

3. The address of the head office of the union to which all communications and notices may be addressed, is.....

4. The.....Union came into existence on the.....day of..... 19.....

5. The union is a union of employers/workers engaged in the.....industry or/..... professions/or..... (establishment) and has.....members.

6. The particulars required by Section 5(1) (c) of the Indian Trade Unions Act, 1926, are given in Schedule I. A copy of the manner and proceedings of appointment/election as officers of the unions is enclosed.

7. The particulars given in Schedule II show the provision made in Rules for the matters detained in Section 6 of the Indian Trade Unions Act, 1926. A copy of the resolution passed in a meeting of the.....on.....approving the Rules is enclosed.

8. (To be struck out in the case of unions which have not been is existence for one year before the date of application). The particulars required by Section 5 (2) of the Indian Trade Unions Act, 1926, are given in Schedule III.

9. Two copies of the Rules of the union are attached to this application duly subscribing the names of seven or more members as required under Section 4 of the Indian Trade Unions Act, 1926.

10. The balance of the General Fund Account of the Trade Union on the day of registration is Rs P.....

11. We have been duly authorised by the Trade Union to make this application on its behalf such authorisation consisting of *.....

Name

Occupation

Address

Signature

(1)

(2)

(3)

(4)

*State here whether the authority to make this application was made by a resolution of a general meeting of the Trade Union or if not, in what other way it was given.

To,

The Registrar of Trade Unions,

Madhya Pradesh

Indore.

I

List of Officers Name of the Trade Union.....

Serial No.

Office held in the Union

Name

Age

Occupation

Address

(1)

(2)

(3)

(4)

(5)

(6)

1

2

3

etc.

II

Reference to Rules

The numbers of the Rules making provisions for the several matters detailed in column (1) are given in column (2) before :-

Matter(1)

Number of Rules(2)

1.

Name of Union.

.....

2.

The whole of the object for which the union has been established.

.....

3.

The whole of the purposes for which the general funds of the union shall be applicable.

.....

4.

The maintenance of a list of members.

.....

5.

The facilities provided for the inspection of the list of members by officers and members.

.....

6.

The admission of ordinary members.

.....

7.

The admission of honorary or temporary members.

.....

8.

The conditions under which members are entitled to benefits assured by the Rules.

.....

9.

The conditions under which fines or forfeitures can be imposed or varied

.....

10.

The manner in which the Rules shall be amended, varied or rescinded.

.....

11.

The manner in which the members of the executive and the other officers of the union shall be appointed and removed.

.....

12.

The safe custody of the funds.

.....

13.

The annual audit to the accounts.

.....

14.

The facilities for the inspection of the account books by officers and members.

.....

15.

The manner in which the union may be dissolved.

.....

III

(This need not be filled in if the union came into existence less than one year before the date of application for registration)

Statement of Liabilities and Assets on the..... day of..... 19.....

Liabilities

Rs. P.

Assets

Rs. P.

(1)

(2)

(3)

(4)

Amount of general fund...

Cash-
Amount of political fund...
In hands of Treasury
Loans from...
In hands of Secretary...
Debts due to...
In hands of-
Other liabilities (to be specified)
In the Bank
In the Bank
Securities as per list below :-
Unpaid subscriptions due loans to-
Immovable property
Goods and furniture
Others assets (to be specified)

.....

.....

Total liabilities.....

Total assets.....

List of Securities

Particulars

Face Value

Cost price

Market value

(1)

(2)

(3)

(4).

(Signed)

1.

2.

3.

4.

5.

6.

7.

Form B

[See Regulation 5]

Registration No..... Date of Registration.....

Name of Trade Union.....

Membership at the time of registration.....

No. of application for registration.....

Address of the I lead Office.....

Date of the application for registration.....

Name of the members making application

Subsequent change of the address of the Head

Office

(1)

(2)

1.2.3.4.5.6.etc.

Name of the officers of the union (as per Schedule I of Form A)-

Serial No.

Year

Name

Office held in union

Age on entry

(1)

(2)

(3)

(4)

(5)

Address

Occupation

Year of relinquishing office

Other offices held in addition to membership with
dates

(6)

(7)

(8)

(9)

This Trade Union, viz.....is of employers/employees.

Registrar of Trade UnionsMadhya Pradesh, Indore

Subsequent change in office bearers

Post held

Year

Year

Year

(1)

(2)

(3)

(4)

1. President.....2. Vice-President.....3.

General Secretary....4. Secretary.....5.

.....6.

.....7.

.....8.

Treasurer.....

Membership in subsequent years

Affiliation to All IndiaOrganization

Year

Membership

Year

Membership

Name of the All IndiaOrganisation

(5)

(6)

(7)

(8)

(9)

Remarks, if any-

Form C

[See Regulation 6]

Certificate of Registration of Trade Union

1. Registration No.....

2. Name of Trade Union.....

Officer of the Registration of Trade Unions Government,
Madhya Pradesh, Indore

It is hereby certified that the.....has been registered under the Indian Trade Unions Act, 1926, this day of.
19.....

(SEAL)

Registrar of Trade Unions

Form D

(See Regulation 8)

Request to Withdraw or Cancel Certificate of Registration

Name of Trade Union.....

Registration Number.....

Address.....

Dated.....the.....day of.....19.....

To,

The Registrar of Trade Unions,
Government of Madhya Pradesh,
Indore

The above-mentioned trade union desires that its certificate of registration under the Indian Trade Unions Act, 1962, may be withdrawn (or cancelled) as at the general meeting* duly held on day of.....19.... it was resolved as follows :-

(Here give the exact copy of the resolution)

(Signed)

*If not at a general meeting, state in what manner the request has been determined upon.

Form E

(See Regulation 9)

To,

The Registrar of Trade Unions,
Madhya Pradesh,
Indore.

Sir,

This is to intimate that by their resolution No..... (copy enclosed) passed in the meeting of the Executive/General Body of this union, the following change(s) in office bearers has/have been affected :-

Name of office

Name of the persons holding the office till the
date of the resolution

Name of the new person elected as office bearer

Remarks

(1)

(2)

(3)

(4)

The election/nomination was held as per rule.....of the Union.

Yours faithfully, Secretary/General Secretary,..... Union.....(Place)

Form F

(See Regulation 10)

Notice of Change of Address of the Head Office of a Registered Trade Union

Name of Trade Union.....

Registration Number.....

Address.....

Dated the.....day of..... 19.....

To,

The Registrar of Trade Unions,
Madhya Pradesh,
Indore.

Notice is hereby given that the head office of the above-mentioned Trade Union has been removed from.....and is now situated at.....in.....city (or town), or district.....

(Signed)

Secretary

This part to be detached by the Registrar when the notice is sent by registered post and returned to the Trade Union.

Received this day of 19notice of removal of the head office of the Registration No.....to (full address).....

(Signed)

Registrar of Trade UnionsMadhya Pradesh

Form G

(See Regulation 13)

Notice of Change of Name

Name of trade union already registered.....

Registration number.....

Address.....

Dated this.....day of.....19.....

To,

The Registrar of Trade Unions,
Madhya Pradesh,
Indore.

Notice is hereby given that the provisions of Section 2.3 of the Indian Trade Unions Act, 1926, having been complied with the name of the above mentioned trade union has been changed to.....

The consent of the members was obtained by*

(Signed)

1..... Secretary

2.

..... Member

3.

..... Member

4.

..... Member

5.

..... Member

6.

..... Member

7.

..... Member

8.

..... Member

*i.e., by referendum; resolution of a general meeting, etc. If the procedure followed is covered by rule, quote number of the rule.

Form H

(See Regulation 14)

Notice of Amalgamation of Trade Unions

A. Name of registered trade union.....

B. Number of registration.....

Serial No.

Name of the Trade Union

Registration number

Address

(1)

(2)

(3)

(4)

1

2

3

C. Dated the.....day of.....19.....

To,

The Registrar of Trade Unions,

Madhya Pradesh,

Indore.

Notice is hereby given that in accordance with the requirements of Section 24 of the Indian Trade Unions Act, 1926, the members of each of the above-mentioned trade unions have resolved to become amalgamated together as one trade union. Copies of the resolution approving the amalgamation are enclosed.

And that the following are the terms of the said amalgamation.

(State the terms)

And that it is intended that the trade union shall henceforth be called the.....

Accompanying this notice is a copy of the Rules intended to be henceforth adopted by the amalgamated trade union.

(To be signed by seven members and the Secretary of each trade union)

(Signed)

1.

Secretary

2.

3.

4.

5.

Members

6.

7.

8.

Form I

(See Regulation 15)

Notice of the Dissolution of a Trade Union

Name of trade union.....

Registration number.....

Dated the.....day of..... 19.....

To,

The Registrar of Trade Unions,

Madhya Pradesh,

Indore.

Notice is hereby given that the above-mentioned trade union was dissolved in pursuance of the Rules thereof on the day of 19.....

We have been duly authorised by the union to forward this notice on its behalf, such authorisation consisting of a resolution passed at a general meeting on the* day of..... 19..., copy of which is enclosed.

(Signed)

1.....

Secretary

2.....

3.....

4.....

5.....

Members

6.....

7.....

8.....

*Here insert the date, or, if there was no such resolution, state in which other way the authorisation was given.

Form J

(See Regulation 17)

Part A ? General Statement prescribed under Section 28 of the Indian Trade Unions Act, 1926 (XVI of 1926)

From 1st April, 19..... to 31st March....

1.

Name of union

.....

2.

Address.....

3.

Registered Head

Office.....

4.

No. and date of certificate of Registration

No.....date.....

5.

To which category of industry the union belongs ? viz., the
public sector or private sector.

.....

6.

Under whose jurisdiction the above-mentioned Industry falls ?
viz., whether Central Government or State Government.

.....

7.

Is the union affiliated to any All India Body ? If so, state
its name and affiliation number.

.....No.....

8.

Affiliation fee.....

Rs. nP. ...

9.

Number and date of payment of affiliation fee to the All India
Body.

Receipt No.?....date.....

10.

Number of the members of the Working Committee.

.....

11.

Number of outsider members, if any, in the Working Committee.

.....

12.

Name of the industry to which the union belongs.

.....

13.

Details about the jurisdiction of the union.

.....

14.

Monthly subscription for the members.

.....

15.

(This information need not be given by federations of trade unions) :-

(a)

Number of members on books at the beginning of the year

.....

(b)

Number of members admitted during the year

.....

Total of (a) and (b)

(c)

Number of members leaving the union during the year

.....

Balance by deduction from theTotal of (a) and

(b)

.....

(d)

Total number of members on books at the end of the year (i.e., on 31st March):-

Males.....

Females.....

Total.....

(e)

Number of members contributing to political fund.

.....

(f)

Number of members paying their subscription for the whole year.

.....

16.

Return to be made by federations of trade unions :-

(a)

Number of unions affiliated at the beginning of the year.

.....

(b)

Number of unions joining during the current year.

.....

(c)

Number of unions disaffiliated during the year.

.....

(d)

Number of unions affiliated at the end of the year.

.....

(e)

Membership fee realised from the affiliated unions.

Rs.....nP.....

(f)

Number of affiliated unions from whom membership fee was received during the year.

.....

(g)

Number of affiliated unions contributing to political fund.

.....

(h)

Number of members of affiliated unions.

Males.....Females.....Total.....

Note :- Information in regard to-

1. (a) Columns 1 to 13 of Part A of this statement to be filled in by both the categories, Le., unions and federations.

(b)

Columns 14 and 15 to be filled in only by the trade unions, not by federations.

(c)

Column No. 16 to be filled in only by the federations.

2. A copy of the rules of the trade union corrected up to the date of despatch thereof to be enclosed with the statements of annual return.

Part B ? General Fund Account

Income

Expenditure

Details

Rs. nP.

Details

Rs. nP.

1.

Balance at the beginning of the year.

1.

Salaries, allowances and expenses of offices.

2.

Subscription received from members as per the following details : -

2.

Salaries, allowances and other expenses of the establishment

(a) Subscription received for the current year.

3.

Auditors fees.....

(b) Subscription in arrears for the current year -

4.

Legal expenses.....

(1) Subscription in arrears for 3 months or less.

5.

Expenses in conducting trade disputes.

(2) Subscription in arrears for 6 months or more than 6 months.

6.

Compensation paid to members for loss arising out of trade

disputes

(c) Subscription in arrears for more than one year

7.

Funeral, old age, sickness, unemployment benefits, etc.

Total

8.

Educational social and religious benefits.

3.

Donations.

9.

Cost of publishing periodicals

4.

Interest on investments

10.

Rents, rates and taxes

5.

Sales of periodicals, books and rules, etc.

11.

Stationery, printing and postage.

6.

Income from miscellaneous sources (to be specified).

12.

Expenses incurred under Section 15 (j) of the Indian Trade Unions Act, 1926.

13.

Other expenses (to be specified)-

(1).....

(1).....

(2).....

(2).....

(3).....

(3).....

(4).....

Total expenditure

(5).....

(6).....

Balance at the end of the year.....

Total.....

Total.....

Treasurer

Part C ? Statement of Liabilities and Assets of Trade Union

On..... 19.....

Liabilities

Assets

Details

Rs. nP.

Details

Rs. nP.

1.

Amount of general fund

1.

Cash

2.

Amount of political fund

(a)

In hands of the Treasurer

3.

Loans from ...

(b)

In hands of the Secretary or other person to be named.

2.

In the Bank

4.

Arrears to be paid -

3.

Securities (as per list in Part D)

4.

Unpaid subscription due [as shown in Part B in columns (b) and (c)]

5.

Other liabilities (to be specified)-

(1).....

(a)

Amount of the current year's subscription

(2).....

(b)

Amount of the last year's subscription

(3).....

5.

Loans

(4).....

(a)

Officers

(b)

Members

(c)

Others

6.

Immovable property

7.

Goods and furniture -

(a)

Of the current year

(b)

Of the last year

8.

Other assets

Total.....

Total.....

Part D ? List of Securities

Particulars

Pace Value

Cost Price

Market price at date on which accounts have been
made up

Deposited with

(1)

(2)

(3)

(4)

(5)

Part E ? Political Fund Account

Income

Expenditure

Details

Rs. nP.

Details

Rs. nP.

1.

Balance at the beginning of the year

1.

Payments made on objects specified in Section 16 (2) of the
Indian Trade Unions Act, 1926

2.

Contributions from members

2.

Expenses of management (to be fully specified)

Total

.....

Balance at the end of the year

Total

Total

.....

Part F ? Auditors' Declaration

The undersigned having had access to till the books and accounts of the.....and having examined the foregoing statements and verified the same with the account vouchers relating thereto, now sign the same as found to be correct, duly vouched and in accordance with the law, subject to the remarks, if any, appended hereto and also certify that the.....had properly maintained its membership register and its accounts and the members had paid their membership subscription Rs..... nPto the.....as shown in the foregoing statement of the general fund account of the trade union, subject to the remarks, if any, appended hereto.

(1)

Auditor

(2)

Auditor

Note :- Each Auditor should state below his signature in what capacity with reference to Regulation 18 he is qualified to audit the trade union's accounts.

Part G ? Officers appointed by election or nomination

Name

Date of birth

Home Address

Occupation

Office held in the union

Whether by election or nomination

Date on which appointment in column (5) was taken up

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Part H ? The following changes of officers have been made during the year

Officers relinquishing office

No.

Name

Office

Date of relinquishing office

- (1)
- (2)
- (3)
- (4)

Form K

(See Regulation 22)

List of Approved Unions

Name of the Union

Address of hear office

Date of entry in the approved list

Date of removal from the approval list

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)

Form L

(See Regulation 23)

Application for being entered in the list of Approved Unions

Name of the union.....

Address.....

Dated theday of..... 19....

To.

The Registrar of Trade Unions,

Madhya Pradesh,

Indore.

Dear Sir,

I beg to state that at the general meeting of the members/at the meeting of the executive of the above-mentioned union which was held at.....on the day of..... 19...., it was resolved that the union should apply to you for being entered in the list of approved unions under Section 28-C of the Indian Trade Unions Act, 1926 (XVI of 1926), for the.....indutry in the local area ofand I request that it may be entered accordingly in the list of approved unions. A copy of the resolution in this behalf signed by the President/Chairman of the union is enclosed.

2. The union was registered under the Indian Trade Unions Act, 1926, on the day of..... 19..., under Certificate No.issued by the Registrar of Trade Unions for Madhya Pradesh.

3. A copy of the rules of the Union is attached which would show that it provides for the matters specified in sub-section

(1) of Section 28-D of the Indian Trade Unions Act, 1926.

4. The address of the head office of the union to which all the communications may be addressed is.....

5. The Union has been recognised as the representative union for the.....industry in the local area of.....under Certification No.....dated....., issued by the Registrar under the Madhya Pradesh Industrial Relations Act, 1960 (No. 27 of 1960).

6. The union has.....members in the.....industry in the local area ofand represents.....per cent of the total number of employees employed in the.....industry in that local area.

Yours faithfully, General Secretary/Secretary.

Form M

(See Regulation 25)

Certificate of Entry into the List of Approved Unions

Name of Union.....

Entry No.....

Office of the Registrar of Trade Unions, Madhya Pradesh, Indore

It is hereby certified that the Union has been entered into the list of Approved Unions maintained under Section 28-A of the Indian Trade Unions Act, 1926 (XVI of 1926), this.....day of 19..., as an approved union for theindustry in the local area of.....

Registrar of Trade Unions, Madhya Pradesh

Form N

(See Regulation 26)

Letter of Authority

Dated.....

Shri who is of the..... Union which is an approved union under the Indian Trade Unions Act, 1926 (XVI of 1926) is authorised by the Union (in the case of Officer) President (in the case of member) to collect sums payable by members to Union on the premises of the following undertaking/ undertakings :-

- 1.
- 2.
- 3.
- 4.

General Secretary/Secretary

Form O

(See Regulation 30)

Letter of Authority

Dated.....

Shri.....who is.....of the Union.....which is an approved union under the Indian Trade Unions Act, 1926 (XVI of 1926), is authorised by the union to meet the employer of the undertaking..... or any person appointed by him for the purpose and discuss with him the grievances of members of the union :-

- 1.
- 2.
- 3.
- 4.

General Secretary/Secretary

Form P

(See Regulation 31)

Letter of Authority

Dated.....

Shri.....who is.....of the Union.....which is an approved union under the Indian Trade Unions Act, 1926 (XVI of 1926), is authorised by the union to visit the*.....to inspect places where members of the union are employed.

General Secretary/Secretary

*Here insert the name of the undertaking.

Form Q

(See Regulation 32)

Before the Industrial Court, Madhya Pradesh, Indore

Reference No.....of 19.....

.....

.....Applicant

Vs.

1.

.....

2.

.....

Non-applicants

3.

.....

Subject: - In the matter of dispute as to the lawful officer of the Trade Union as per Section 28-J of the Indian Trade Unions Act, 1926.

May it please the Hon'ble Court,

The above named applicant begs to submit that.....is a registered trade union with registration No under Section 9 of the Indian Trade Unions Act, 1926.

2. That the applicant was duly elected/nominated as the.....of the said union in pursuance of rule.....of the Union, and is the lawful holder of the said office.

3. That the non-applicant not being the lawful holder of the said office is nevertheless purporting to act as such.

4. It is, therefore, prayed that the applicant may be declared to be the lawful officer holding the post of in the union.

5. As required under Regulation No. 32 a certified copy of the rules of the union.....is enclosed.

Dated.....

Applicant

The applicant hereby solemnly declares that what is stated above is true to the best of his knowledge and belief.

Dated.....

Applicant

Form R

(See Regulation 32)

Before the Industrial Court, Madhya Pradesh, Indore

Reference.....No.....of 19.....

1.

.....

.....

Party No. 1

2.

.....

.....

Party No. 2

3.

.....

.....

Party No. 3

Subject : - In the matter of a dispute about the lawful officer of the trade union as per Section 28-J of the Indian Trade Unions Act, 1926.

May it please the Hon'ble Court,

1. Shri the Registrar of Trade Unions, Madhya Pradesh, beg to submit that there exists a dispute between parties as to who is the lawful officer, namely.....of the.....union.

2. The respective contentions of the parties in support of their claims for holding the post(s) in so far known to me, are

enclosed.

3. It is, therefore, prayed that the Court may be pleased to declare the persons who should be the lawful holder of the office of.....

4. As required under Regulation No. 32, a certified copy of the Rules of the Union.....is enclosed.

Registrar of Trade Union, Madhya Pradesh, Indore

Dated.....

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Translation